Thring Townsend
Solicitors

DATED 20th March 2006

WINSLEY CRICKET CLUB (PROPERTY) LIMITED

and

MESSRS POTTER, SWINBURNE, HOLBROW & GIBBONS

LEASE

relating to

Cricket Field adjoining Winsley Manor

Winsley

Bradford on Avon

Wiltshire

Swindon
6 Drakes Meadow
Penny Lane
Swindon
SN3 3LL

Tel: 01793 410800
Fax: 01793 539040

Bristol
Saint Bartholomews
Lewins Mead
Bristol
BS1 2NH

Tel: 0117 9309500
Fax: 0117 9293369

Bath
Midland Bridge
Bath
BA1 2HQ

Tel: 01225 340000
Fax: 01225 319735

THIS LEASE is made the 20th day of March 2006

BETWEEN

(1) **WINSLEY CRICKET CLUB (PROPERTY) LIMITED** (Co. Regn. No. 05677929) whose registered office is at 1905 House Winsley Manor Winsley Bradford on Avon Wiltshire BA15 2LT (hereinafter called "the Landlord" which expression shall where the context so admits include the persons for the time being entitled to the reversion immediately expectant on the term hereby created)

(2) **DERRICK KEITH POTTER** of 40 Broomground Winsley Bradford on Avon Wiltshire **NICHOLAS JOHN SWINBURNE** of 42 Ebbisham Drive London SW8 1UB **MICHAEL JOHN HOLBROW** of 45 Spencers Orchard Bradford on Avon Wiltshire and **MARK EDWIN GIBBONS** of The Chimes 3a Church Lane North Bradley Trowbridge Wiltshire BA14 0TF the present Trustees of the Winsley Cricket Club (hereinafter called respectively "the Trustees" and "the Club" the expression "the Trustees" including the Trustees for the time being of the Club)

WITNESSETH as follows:-

1. In consideration of the rent and the covenants by the Trustees hereinafter reserved and contained the Landlord hereby demises unto the Trustees ALL THAT piece or parcel of land situate at Winsley in the County of Wiltshire which said piece or parcel of land is for identification purposes only shown edged red on the attached plan ("the Plan") (hereinafter called "the demised premises") TO HOLD the same unto the Trustees for the term of 199 years from 14th February 2006 paying therefore during the tenancy one peppercorn per annum (if demanded)

2. The Trustees hereby jointly and severally covenant with the Landlord to observe and perform the provisions and stipulations contained in the Schedule hereto

3. The Landlord hereby covenants with the Trustees that the Trustees observing and performing the provisions and stipulations contained in the Schedule hereto shall peaceably hold and enjoy the demised premises during the said term without any interruption by the Landlord or any person rightfully claiming under or in trust for it

4. PROVIDED always and it is hereby agreed as follows:-

   (1) If the reserved rent or any part thereof shall be in arrear for 21 days (whether formally demanded or not) or if there shall be a breach of any stipulation or provision contained in the Schedule hereto or if the Club shall cease to exist the Landlord may re-enter on the demised premises and thereupon the term hereby created shall forthwith determine without prejudice to the Landlord's rights and remedies in respect of any such breach

TITLE NUMBER

WT212385

WILTSHIRE : WEST WILTSHIRE

ORDNANCE SURVEY MAP REFERENCE: ST8060NW

SCALE 1:1250

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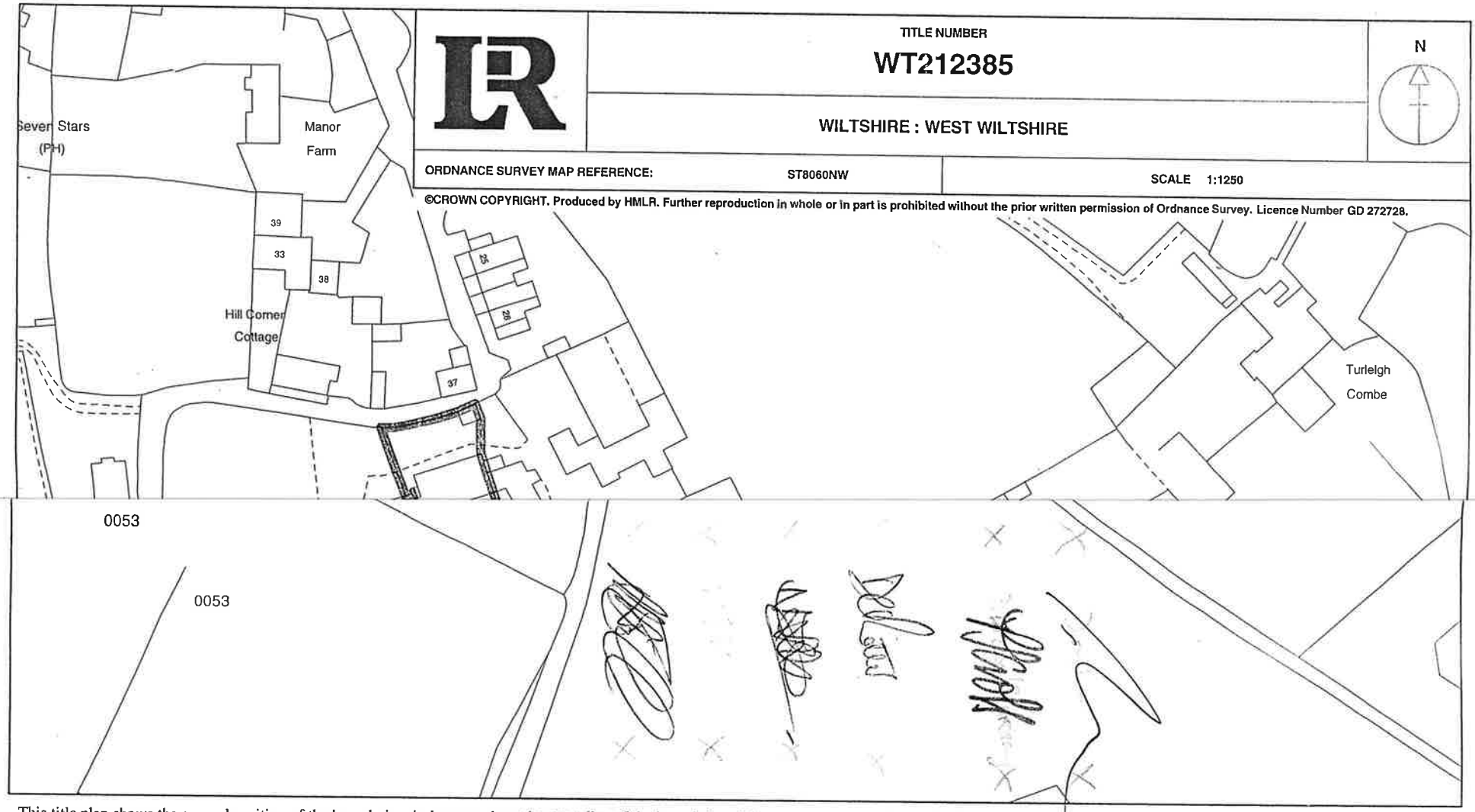

This title plan shows the general position of the boundaries: it does not show the exact line of the boundaries. Measurements scaled from this plan may not match measurements between the same points on the ground. For more information see Land Registry Public Guide 7 - *Title Plans*.
This official copy shows the state of the title plan on **16 May 2005** at **16:04:43**. It may be subject to distortions in scale.
Under s.67 of the Land Registration Act 2002, this copy is admissable in evidence to the same extent as the original.
Issued on 16 May 2005.
This title is dealt with by the **Weymouth District Land Registry.**

H.M. LAND REGISTRY
PB
09/2002

(2) Any notice under this Lease shall be in writing and may be served on the person on whom it is to be served either personally or by leaving it for him at the demised premises in case of the Trustee or at his last known place of abode or by sending it by the recorded delivery service to such premises or place. In the case of a notice to be served on the Landlord it may be served in like manner upon any agent or the Landlord duly authorised in that behalf and in the case of a notice to be served on the Trustees it may be left at or sent to the demised premises addressed to the Secretary of the Club

(3) There is granted by the Landlord to the Trustees as appurtenant to this demise the right during and throughout the first full week in July each year to enter with invitees and members of the public onto the land edged green on the attached plan with or without machinery and displays and like items and to hold thereon a charity fund raising event provided that upon the conclusion of such event the Trustees shall carry out any required preparation and shall also ensure that the land is left in a clean and tidy condition

IN WITNESS whereof the parties hereto have executed this document as a deed on the day and year first hereinbefore written

THE SCHEDULE

hereinbefore referred to Obligations of the Trustees

1. To pay the reserved rent at the times and in the manner aforesaid
2. To discharge all existing and future rates taxes assessments and outgoings whatsoever imposed on or payable by the owner or occupier of the demised premises in respect thereof
3. To keep all the walls fences and gates upon the demised premises together with the septic tank and apparatus and media ancillary thereto always in good repair and condition
4. To make such alterations and no others in the character and general arrangement of the demised premises as may be necessary or desirable for laying out and maintaining the same as a proper cricket ground and as may be approved for that purpose by the Landlord or its surveyor
5. Not to assign underlet or part with the possession of the demised premises or any part thereof except for the purpose of vesting the term created hereby in the Trustees for the time being of the Club
6. To manage the demised premises in a good and husbandlike manner so as to keep the land constantly in good heart and condition and in good sound turf Providing that no fertiliser shall be used on the land which may be dangerous or damaging to animal and bird life

7. To keep the demised premises clean and tidy and free of litter and refuse

8. Not without the Landlord's previous written consent (such consent not to be unreasonably withheld) to cut down or injure any trees plants bushes or hedges or remove any soil clay sand or other materials from the demised premises

9. To use the demised premises and such buildings (if any) as may be erected thereon pursuant to paragraph 9 hereof as a private cricket ground and Cricket Club pavilion only or for such other games or recreation (if any) as may be sanctioned or approved of from time to time in writing by the Landlord

10. The Club may sell food and drinks (including intoxicating drinks) to members of the Club their visitors and supporters of the Club (subject to compliance with any associated statutes and bye-laws) subject to such sales being associated purely with the playing of cricket on the ground – all other such sales being subject to prior specific approval by the Landlord

11. Not to erect any building or other structure on the demised premises except such Club pavilion and shed as shall be approved as to site dimensions and otherwise by the Landlord or its surveyor after submission to them by the Trustees of the proposed plans and elevations thereof such approval not to be unreasonably withheld

12. To obtain all necessary planning approvals and permissions for the use above mentioned and for the erection of any buildings permitted under this Lease and to do all acts and things required by and perform any works conformably in all respects with the provisions and conditions thereof and with the provisions of any statute rule order regulation or bye-law applicable provided that for the avoidance of doubt the Tenant shall not apply for or implement any planning permission relating to the demised premises without the prior written approval of the Landlord

13. Not to place sight screens along those boundaries of the demised premises marked A-B and C-D on the Plan when not in use

14. Not to permit any cricket matches to be played on the demised premises in the event of fowl pest or foot and mouth disease being confirmed in the area without the consent in writing of the Landlord

15. Not to permit the members of the Club its servants or visitors to trespass on the adjoining fields except for the purpose of retrieving cricket balls during cricket matches

16. Not to allow any persons except the Landlord's members and servants of the Club and guests of members to use the demised premises for any purpose save with the prior written permission of the Landlord except that members of the general public may be allowed to enter thereon for the purpose of witnessing any cricket match.

17. To permit the Landlord and its duly authorised agents at all reasonable times to enter the demised premises to inspect the condition thereof and for all other reasonable purposes

18. If the Trustees shall be entitled to remove all or any buildings or structures erected on the demised premises to pull down and remove the same in a workmanlike manner and so as not to cause any damage to the demised premises and forthwith after such removal to restore the site thereof so far as possible to its present condition and to pay to the Landlord proper and adequate compensation for any damage caused by or resulting from such removal

19. To erect a fence or plant a hedge not less than 22 metres in length along the boundary within the demised premises on the northern side of the cricket pavilion (the type of hedge or fence and its ultimate height to be agreed between the Trustees and the Landlord) so that all equipment vehicles and any other miscellaneous items brought onto the ground by the Trustees are parked or deposited in that position and consequently screened from the grounds of Winsley Manor

20. Not to park or allow to remain any equipment or vehicles along the north-western boundary of the demised premises save and insofar as is totally screened from view by any hedge planted in accordance with paragraph 19 above

21. To keep any gates giving access to and egress from the demised premises locked at all times during which a representative of the Club is not in physical attendance on the demised premises

22. Not to leave any plant stock goods or machinery on the demised premises or conduct any other activities on the demised premises that might prove to be an enticement to trespassers

23. Not to erect upon or bring on to the demised premises any caravan or tent (unless to be used for temporary cricket related purposes) and not to permit any camping on the demised premises without the prior consent of the Landlord

24. Not to do anything likely to cause a nuisance to property owners neighbouring or adjacent to the demised premises provided that the use of the demised premises as a cricket club shall not per se be deemed to be a breach of this Clause

25. To deliver up the demised premises at the termination of the term in a condition consistent with the foregoing provisions.

26. To insure with a reputable insurance office first approved by the Landlord and in the joint names of the Landlord and the Tenant:-

    (1) any buildings on the demised premises to their full reinstatement value against damage or destruction caused by fire and such other risks as are usually covered on a comprehensive buildings insurance policy and in the event of damage or destruction of the demised premises by an insured risk to lay out the proceeds of insurance in rebuilding and reinstating any buildings on the demised premises

    (2) third party public liability risks with such limit of indemnity as the Landlord shall from time to time reasonably require

EXECUTED as a Deed by
WINSLEY CRICKET CLUB (PROPERTY) LIMITED
acting by:-

Director:

Director/Secretary:

SIGNED as a Deed by
DERRICK KEITH POTTER
in the presence of:-

Witness

Name...MRS. J.C. HUSSEY.....

Address...37 C. WOODMARSH...

...NORTH BRADLEY, TROWBRIDGE
BA14 0SA

Occupation...ADMINISTRATIVE OFFICER

J.C. Hussey

SIGNED as a Deed by
NICHOLAS JOHN SWINBURNE
in the presence of:-

Witness

Name...H. A. RYLAND.....

Address...8 ELM GROVE.....

SWAINSWICK, BATH BA1 7AZ

Occupation...COMPANY DIRECTOR

SIGNED as a Deed by
MICHAEL JOHN HOLBROW
in the presence of:-

Witness

Name Mrs J Greenwood

Address 8 Inglesham Close
Trowbridge, Wilts

Occupation Quality Manager

SIGNED as a Deed by
MARK EDWIN GIBBONS
in the presence of:-

Witness

Name Mr Ian White

Address 24 Cassell Drive
Hilperton Trowbridge

Occupation Insurance Consultant

OFFICIAL COPY OF REGISTER ENTRIES

This official copy shows the entries subsisting on the register on **19 September 2006** at **14:59:45**
This date must be quoted as the 'search from date' in any official search application based on this copy.
Under s.67 of the Land Registration Act 2002, this copy is admissible in evidence to the same extent as the original.
Issued on 19 September 2006.
This title is dealt with by **Land Registry Weymouth Office.**

Land Registry

Title Number : **WT251678**

Edition Date : 15 August 2006

A: Property Register

This register describes the land and estate comprised in the title.

WILTSHIRE : WEST WILTSHIRE

1. (15.08.2006) The **Leasehold** land shown edged with red on the plan of the above Title filed at the Registry and being The Cricket Pitch, Winsley, Bradford on Avon.

2. (15.08.2006) Short particulars of the lease(s) (or under-lease(s)) under which the land is held:
   Date : 20 March 2006
   Term : 199 years from 14 February 2006
   Parties : (1) Winsley Cricket Club (Property) Limited
   (2) Derrick Keith Potter and others

3. (15.08.2006) There are excepted from the effect of registration all estates, rights, interests, powers and remedies arising upon, or by reason of, any dealing made in breach of the prohibition or restriction against dealings therewith inter vivos contained in the Lease.

4. (15.08.2006) The lessor's title is registered.

B: Proprietorship Register

This register specifies the class of title and identifies the owner. It contains any entries that affect the right of disposal.

Title Absolute

1. (15.08.2006) **PROPRIETOR:** DERRICK KEITH POTTER of 40 Broomground, Winsley, Bradford on Avon, Wilts and NICHOLAS JOHN SWINBURNE of 48 Broomground, Winsley, Bradford on Avon, Wilts and MICHAEL JOHN HOLBROW of 45 Spencers Orchard, Bradford on Avon, Wilts and MARK

Continued overleaf

C: Charges Register continued

made between (1) Denis Arthur Gordon Gilmer and Phyllis Mary Gilmer (2) Denis Arthur Gordon Gilmer and others and (3) Paul Manning Darlow and Barbara Joan Darlow contains restrictive covenants.

NOTE: Copy filed under WT212385.

END OF REGISTER

NOTE: The date at the beginning of an entry is the date on which the entry was made in the Register.

TITLE NUMBER

WT251678

WILTSHIRE : WEST WILTSHIRE

N

ORDNANCE SURVEY MAP REFERENCE: ST8060NW

SCALE 1:1250 Enlarged from 1/2500

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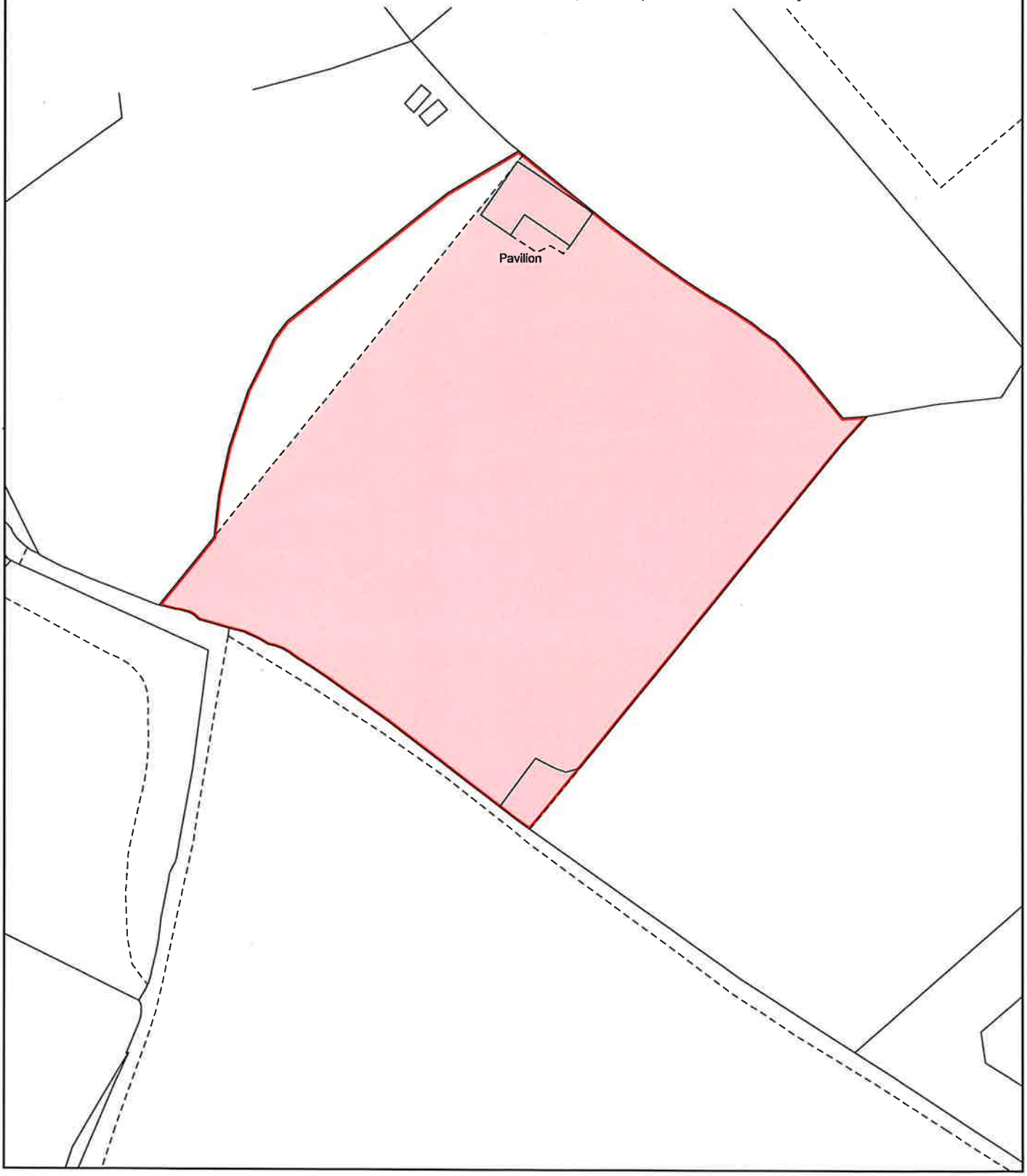

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H.M. LAND REGISTRY KH 09/2006